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Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO

Franciscus Dylan Rosario,

PLAINTIFF,

v.

CSAA Insurance Exchange;

and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802
(Related to CGC-21-594102)

Case Management Conference: May 27, 2026 at 10:30 a.m., Department 610, 400 McAllister Street, San Francisco, CA 94102-3680

AMENDED COMPLAINT FOR DAMAGES AND INJUNCTIVE RELIEF

1. FRAUD AND DECEIT (Civ. Code §§ 1709-1710)
2. VIOLATION OF BUS. & PROF. CODE § 17200 (UCL)

DEMAND FOR JURY TRIAL

INTRODUCTION AND LIMITED THEORY OF THE CASE

1. Plaintiff brings this action on a narrow, document-anchored theory: a pre-litigation business misrepresentation by Defendant CSAA Insurance Exchange in a liability-claim denial letter, **made**

knowingly or recklessly and used as institutional leverage to discourage or curtail an injured claimant's pursuit of a valid claim (a deny–delay–defend claim-suppression tactic).

2. The core alleged misrepresentation is in a letter dated February 25, 2021, in which CSAA stated, in substance, that it had "concluded" its investigation and "concluded" its insured was not liable (the Denial Letter).

3. Plaintiff alleges that, in context and ordinary meaning, the Denial Letter represented a completed investigative fact, namely that CSAA had already performed and completed an investigation sufficient to justify a categorical liability denial as of the letter date, **and that the representation of investigative finality was intended and reasonably understood to signal futility—i.e., that further pursuit would be pointless unless Plaintiff undertook burdens CSAA represented had already been completed.**

4. Plaintiff alleges that the Denial Letter representation of a "concluded" investigation was materially false when made because, at that time, CSAA had not obtained or reviewed **basic, readily obtainable, and foundational objective liability evidence** for the incident, including:

- 911 audio;
- body-worn camera footage; and
- computer aided dispatch records.

As alleged below, these categories of foundational objective evidence were generated contemporaneously with the February 4, 2021 incident and were identifiable and obtainable during the period CSAA represented its investigation had already "concluded."

5. Plaintiff further alleges that the falsity of the Denial Letter is corroborated by CSAA's later claim activity reflecting post-denial pursuits of the same foundational objective liability evidence.

6. Plaintiff alleges reliance and resulting economic injury in two connected categories:

- discrete out-of-pocket procurement and investigation expenses incurred to obtain the foundational objective evidence that CSAA represented had already been investigated; and
- fees and costs incurred in the related third-party litigation that Plaintiff alleges was reasonably and proximately forced by the Denial Letter misrepresentation, **because the misrepresentation shifted the burden of foundational evidence collection and authentication**

onto Plaintiff as the price of continuing, and that are sought here as damages under the tort-of-another doctrine described in *Prentice v. North Am. Title Guar. Corp.*

7. Plaintiff pleads attorney-fee damages with segregation and proof discipline, and does not seek to recover unrecoverable or unsegregated fees. Plaintiff seeks third-party litigation fees and costs, if any, only to the extent they are proximately caused by CSAA's tortious conduct and are proven with competent evidence, segregation, and reasonableness.

8. Plaintiff further alleges that he incurred additional economic loss in the form of lost earnings, diminished earning capacity, and lost productive time attributable to the incremental procurement, review, authentication, and litigation-support burdens created by CSAA's Denial Letter misrepresentation. Plaintiff pleads these categories separately from attorney-fee damages and will prove them with competent, non-speculative evidence, including documentation of time expended, economic value of that time, and the causal connection to the fraud-induced burdens alleged herein.

JURISDICTION AND VENUE

9. This Court has jurisdiction over this action because the causes of action asserted herein arise from conduct occurring in California and involve Defendants who do business in California.

10. Venue is proper in San Francisco County because the events and omissions giving rise to the claims occurred, in substantial part, in San Francisco County, and Defendant CSAA does business in this County.

PARTIES

11. Plaintiff FRANCISCUS DYLAN ROSARIO is an individual residing in Sonoma County, California.

12. Defendant CSAA INSURANCE EXCHANGE ("CSAA") is a California reciprocal insurer and, upon information and belief, does business in California, including in San Francisco County.

13. Plaintiff is ignorant of the true names and capacities of Defendants sued herein as DOES 1 through 50, inclusive, and therefore sues these Defendants by such fictitious names. Plaintiff will amend this Complaint to allege their true names and capacities when ascertained. Plaintiff is informed and believes, and based thereon alleges, that each Doe Defendant is legally responsible in some manner for the occurrences alleged and that Plaintiff's damages were proximately caused

by their conduct.

FACTUAL ALLEGATIONS

THE COLLISION AND CLAIM SUBMISSION

14. On or about February 4, 2021, Plaintiff was struck by a vehicle driven by CSAA's insured in connection with the related matter CGC-21-594102.

15. Plaintiff made a bodily injury liability claim to CSAA as the liability insurer for its insured.

THE FEBRUARY 25, 2021 DENIAL LETTER

16. On February 25, 2021, CSAA mailed Plaintiff the Denial Letter stating, in substance:

> "We have concluded our investigation... [and] concluded that our insured is not liable."

17. Plaintiff alleges the Denial Letter represented that CSAA had already completed its investigation as of February 25, 2021, and had reached its liability conclusion based on that completed investigation.

18. Plaintiff alleges the Denial Letter statement that the investigation was "concluded" was materially false when made because, at the time of the Denial Letter, CSAA had not obtained and reviewed foundational objective liability evidence, including:

- the 911 call audio;
- body-worn camera footage; and
- computer aided dispatch records.

Plaintiff alleges that the timing and obtainability facts supporting this falsity are set forth in paragraphs 19 through 22, below.

CHRONOLOGY OF PRE-DENIAL INVESTIGATION AND OBTAINABILITY

19. Plaintiff alleges that the collision occurred on or about February 4, 2021. Plaintiff further alleges that, because law enforcement responded and the incident was reported through emergency channels, foundational objective incident records were generated contemporaneously in the ordinary course, including a 911 call recording, computer aided dispatch ("CAD") logs reflecting the dispatch and response sequence, and officer body-worn camera footage ("BWC") capturing

on-scene statements and observations.

20. Plaintiff alleges that CSAA's Denial Letter dated February 25, 2021 necessarily represented that CSAA had completed whatever investigation it claims to have performed during the approximately three-week period between February 4, 2021 and February 25, 2021. Plaintiff further alleges that the 911 recording and CAD logs were readily identifiable, requestable, and obtainable within that time period through routine insurer claim-handling practices and ordinary third-party record requests, and that BWC evidence was likewise identifiable and obtainable through appropriate requests, subpoenas, and/or law-enforcement record channels where liability was contested and police responded.

21. Plaintiff further alleges that the practical obtainability of the 911 recording is corroborated by later objective record history: Plaintiff's then-counsel (Dolan Law Firm) obtained the 911 audio recording on May 12, 2021, as reflected in sworn hearing testimony in the Underlying Action. (Hearing Tr., Feb. 18, 2025, p. 31, ll. 22–24.) Plaintiff alleges that the same categories of foundational objective evidence were obtainable during the period CSAA represented its investigation had already "concluded," and that CSAA's failure to obtain and review such evidence before issuing a categorical denial renders the "investigation concluded" representation materially false or, at minimum, recklessly made without reasonable grounds.

OBJECTIVE CLAIM ACTIVITY AFTER THE DENIAL LETTER

22. Plaintiff alleges that CSAA's post-denial claim activity reflects subsequent efforts to obtain the same foundational objective liability evidence identified above—i.e., 911 audio, body-worn camera footage, and computer aided dispatch records—corroborating that CSAA's investigation was not actually concluded when CSAA issued the Denial Letter, **and corroborating that CSAA's "investigation concluded" representation conveyed investigative finality that was untrue when made.**

C-1. CORROBORATION OF SCIENTER AND INSTITUTIONAL CLAIM-SUPPRESSION PURPOSE (DDD)

22A. Plaintiff alleges that describing an investigation as "concluded" in a categorical liability denial is not a neutral phrase; it is a representation of investigative finality that carries foreseeable coercive force. A reasonable consumer understands "concluded investigation" to mean the insurer has already obtained and evaluated basic objective incident records typically used to verify liability—especially where such records are readily obtainable from public agencies or routine channels.

22B. Plaintiff alleges CSAA's failure to obtain and review the foundational objective liability records identified above before issuing a categorical "investigation concluded / not liable" denial supports an inference of scienter: either CSAA actually knew the investigation was not complete when it represented otherwise, or CSAA made the representation recklessly without reasonable grounds for believing it true, because the existence and relevance of such records are obvious and central to a reasonable liability investigation.

22C. Plaintiff further alleges the purpose and natural consequence of falsely representing investigative finality is institutional claim suppression—i.e., to shift the cost and delay of basic evidence collection to the claimant, increase the claimant's burden to continue, and induce abandonment, curtailment, or discounted resolution. Plaintiff alleges this is consistent with a deny–delay–defend pattern in which the insurer creates leverage through delay and burden-shifting rather than through a good-faith investigation.

22D. Plaintiff alleges that CSAA's later claim activity corroborates the falsity and further corroborates CSAA's state of mind at the time of the Denial Letter, because post-denial efforts to obtain the same foundational objective records are inconsistent with the claim that CSAA had already "concluded" its investigation as of February 25, 2021.

22E. Plaintiff pleads paragraphs 22A–22D as corroboration of CSAA's knowledge, recklessness, and institutional purpose at the time of the Denial Letter, and not as an attempt to litigate privileged communications or to transform this action into a separate "fraud on the court" cause of action.

RELIANCE AND ECONOMIC INJURY

23. Plaintiff alleges he reasonably and justifiably relied on CSAA's written statement that its investigation was "concluded" by understanding it, in ordinary consumer meaning, to represent that CSAA had already obtained and reviewed foundational objective liability evidence before issuing a categorical denial—**not merely that CSAA had reached an opinion, but that CSAA had completed the basic investigative steps that would justify stating the investigation itself was finished.**

24. Plaintiff alleges that, as a direct and proximate result of CSAA's misrepresentation, Plaintiff incurred discrete out-of-pocket procurement and investigation expenses to obtain records and evidence that CSAA represented had already been investigated, including:

- fees paid to obtain public records and related materials;
- fees paid for copying, certification, and retrieval; and
- fees paid for transcription and review of obtained audio and video.

FORCED THIRD-PARTY LITIGATION AND PRENTICE ATTORNEY-FEE DAMAGES

25. Plaintiff alleges that CSAA's Denial Letter misrepresentation reasonably and foreseeably forced Plaintiff into third-party litigation in CGC-21-594102 to vindicate his claim and to obtain and authenticate foundational objective evidence relevant to liability, **because CSAA's misrepresentation and continuing denial position functionally required Plaintiff to undertake record procurement and authentication burdens CSAA represented had already been completed, thereby increasing delay and pressure to give up.**

26. Plaintiff alleges that the third-party litigation generated incremental evidence procurement and authentication burdens, and that Plaintiff incurred fees and litigation costs in that third-party action that would not have been incurred but for CSAA's Denial Letter misrepresentation.

27. Plaintiff alleges that the fees and costs incurred in the third-party litigation are sought here as tort damages under the tort-of-another doctrine described in Prentice, because CSAA's tortious conduct caused Plaintiff to incur fees in litigation with another party.

28. Plaintiff does not seek attorney fees in this action as a prevailing-party fee award. Plaintiff seeks third-party litigation fees and costs as consequential damages proximately caused by CSAA's Denial Letter misrepresentation, subject to proof and segregation.

29. Plaintiff alleges that, consistent with California proof requirements for attorney-fee damages (including segregation and reasonableness requirements under California law), Plaintiff will prove at trial:

- the fact of the fees and costs incurred through competent evidence;
- that the fees and costs were reasonably and necessarily incurred as a proximate result of CSAA's Denial Letter misrepresentation; and
- segregation of recoverable fees and costs from any non-recoverable or unrelated time entries and tasks.

LOST EARNINGS, LOSS OF EARNING CAPACITY, AND LOST PRODUCTIVE TIME CAUSED BY FRAUD-INDUCED BURDENS

30. Plaintiff alleges that CSAA's Denial Letter misrepresentation created incremental burdens that required Plaintiff to spend substantial time and effort obtaining, reviewing, organizing, transcribing, authenticating, and presenting foundational objective evidence that CSAA represented had already been investigated before issuing a categorical denial.

31. Plaintiff alleges that these incremental tasks and burdens were reasonably foreseeable consequences of CSAA's misrepresentation and would not have been incurred, or would have been materially reduced, had CSAA truthfully investigated and communicated the status of its investigation rather than stating it was "concluded."

32. Plaintiff alleges that the incremental burdens described above caused Plaintiff to lose earnings and productive time, including time diverted from employment, business activity, recovery, and ordinary life functions, and that Plaintiff will prove the amount and value of this loss with competent evidence, including time logs, calendars, earnings history, and related documentation.

FRAUD-INDUCED DELAY, PHYSICAL EXACERBATION, AND ADDITIONAL HEALTH-RELATED HARM

33. Plaintiff alleges he suffered severe injuries in the underlying collision and that CSAA knew, or had reason to know, from the nature of the claim and the information provided in connection with the bodily-injury liability claim, that Plaintiff was physically vulnerable and that prolonged stress, delay, and repeated high-strain demands would foreseeably impose additional physical toll.

34. Plaintiff alleges that CSAA's false statement that its investigation was "concluded" foreseeably forced Plaintiff into a protracted and burdensome multi-year effort to establish and authenticate foundational objective evidence relevant to liability, resulting in recurring high-strain events including prolonged sitting, travel, preparation demands, and extended periods of stress and uncertainty.

35. Plaintiff alleges that, as a direct and proximate result of the fraud-induced delay and burdens described herein, Plaintiff suffered incremental physical harm beyond the underlying collision injuries, including exacerbation of pain, flare episodes, sleep disruption, deconditioning, and functional decline, and that Plaintiff required additional medical or therapeutic care to address these incremental harms.

36. Plaintiff alleges that the incremental physical harm described herein is pleaded as a separate "fraud-delta" category of damages proximately caused by CSAA's misrepresentation and is not intended to duplicate damages sought or awarded for the underlying collision itself.

EMOTIONAL DISTRESS, HUMILIATION, AND PSYCHOLOGICAL HARM PROXIMATELY CAUSED BY FRAUD-INDUCED DELAY AND BURDENS

37. Plaintiff alleges that CSAA's Denial Letter conveyed finality by stating, in substance, that CSAA had "concluded" its investigation and "concluded" its insured was not liable. Plaintiff alleges that this representation, when false, foreseeably inflicted substantial emotional and psychological harm by placing Plaintiff in the position of being categorically denied while also being forced to personally bear the burden of obtaining and proving the foundational objective evidence

CSAA represented had already been investigated.

38. Plaintiff alleges that, as a direct and proximate result of the fraud-induced delay, uncertainty, and forced proof burdens described herein, Plaintiff suffered emotional distress and psychological harm including anxiety, persistent stress, sleep disruption, and related symptoms, as well as humiliation and loss of dignity associated with being treated as though his claim lacked merit notwithstanding the existence of readily obtainable objective evidence.

39. Plaintiff alleges that the emotional and psychological harm described herein manifested physically and functionally, including exacerbation of pain and impairment of daily functioning, and that Plaintiff incurred additional out-of-pocket medical or therapeutic expenses related to managing these conditions.

40. Plaintiff alleges that the emotional, psychological, and dignitary harms described herein are pleaded as incremental "fraud-delta" damages proximately caused by CSAA's misrepresentation and the resulting burdens, and not as a duplication of the pain and suffering caused by the underlying collision itself.

ADDITIONAL SPECIAL DAMAGES: MEDICAL/THERAPEUTIC EXPENSES, TRANSPORTATION, AND HOUSEHOLD ASSISTANCE

41. Plaintiff alleges that, as a direct and proximate result of the fraud-induced delay and burdens described herein, Plaintiff incurred additional out-of-pocket expenses including, but not limited to, medical visits, therapy or counseling, medication expenses, transportation expenses associated with treatment and required events, and costs of assistance with household tasks and self-care that were increased by the incremental physical and psychological toll caused by the fraud-induced delay.

42. Plaintiff will prove the amount of these additional out-of-pocket expenses with competent documentary evidence, including invoices, receipts, medical billing records, pharmacy records, and other admissible proof.

FUTURE DAMAGES CAUSED BY FRAUD-INDUCED AGGRAVATION AND ONGOING HARM

43. Plaintiff alleges that the fraud-induced physical and psychological toll described herein has ongoing consequences and may require future medical or therapeutic care, and may continue to impair Plaintiff's ability to work and to engage in ordinary life activities. Plaintiff seeks recovery of future economic and non-economic damages proximately caused by CSAA's fraud, according to proof.

CAUSES OF ACTION

FIRST CAUSE OF ACTION

FRAUD AND DECEIT (CIV. CODE §§ 1709-1710)

(AGAINST CSAA AND DOES 1-25)

44. Plaintiff realleges and incorporates by reference paragraphs 1 through 43 as though fully set forth herein.

45. On February 25, 2021, CSAA, through a claims representative whose identity is presently unknown to Plaintiff and is therefore sued as Doe 1, mailed Plaintiff the Denial Letter stating that CSAA had "concluded" its investigation and "concluded" that its insured was not liable, **as a business claim decision and denial communication issued in the ordinary course of CSAA's claim-handling practices.**

46. Plaintiff alleges this statement was a representation of an existing or past fact—**investigative finality**—namely that CSAA had already completed its investigation as of the Denial Letter date and that its liability conclusion was based on that completed investigation.

47. Plaintiff alleges the representation was false when made because CSAA had not obtained and reviewed **basic, readily obtainable, foundational objective liability evidence**—including the 911 audio, body-worn camera footage, and computer aided dispatch records—as of February 25, 2021. Plaintiff further alleges that these categories of foundational objective evidence were generated contemporaneously with the February 4, 2021 incident and were identifiable and obtainable during the period CSAA claimed its investigation had "concluded," as alleged in paragraphs 19 through 21.

48. Plaintiff alleges CSAA knew the representation was false when made, or made it recklessly without reasonable grounds for believing it to be true, **because a reasonable insurer would know that a liability investigation cannot be truthfully described as "concluded" without obtaining and reviewing the foundational objective incident records identified above (or, at minimum, without knowing whether such records exist and what they show).** Plaintiff further alleges CSAA made the representation **as institutional leverage**—with intent to induce Plaintiff to aban-

don, curtail, or discount pursuit of his claim—by falsely presenting investigative finality, shifting basic evidence-procurement burdens onto Plaintiff, and increasing delay and pressure consistent with deny–delay–defend claim suppression.

48A. Plaintiff alleges CSAA's conduct was not a mere negligent miscommunication. It was an affirmative business representation of investigative finality used to obtain leverage over an injured claimant. Plaintiff alleges that falsely declaring an investigation "concluded" while omitting basic foundational record collection constitutes despicable conduct in willful disregard of the rights of others because its natural and probable consequence is to increase the claimant's burdens, delay, and coercive pressure to give up.

48B. Upon information and belief, Plaintiff alleges CSAA's denial-letter wording and claim-handling approach reflect institutional practices, training, supervision, and performance incentives that authorize, encourage, or tolerate categorical denial communications representing investigative finality when foundational objective evidence has not been obtained or reviewed, including claim-closure targets, supervisor review practices for liability denials, and standardized denial letter templates.

48C. Upon information and belief, Plaintiff alleges CSAA's officers, directors, or managing agents authorized, ratified, or were aware of and consciously disregarded these practices, thereby supporting punitive damages under Civil Code section 3294 to the extent proven.

49. Plaintiff alleges he justifiably relied on CSAA's representation and that his reliance was a substantial factor in causing the economic losses pleaded herein.

50. As a direct and proximate result of CSAA's fraud and deceit, Plaintiff alleges he incurred and continues to incur damages including:

(a) Out-of-pocket procurement and investigation expenses incurred to obtain foundational objective evidence that CSAA represented had already been investigated, including fees paid to obtain public records and related materials, copying/certification/retrieval fees, and transcription and review expenses;

(b) Attorney fees and litigation costs incurred in the related third-party litigation that Plaintiff alleges were proximately caused by CSAA's misrepresentation and are recoverable as damages

under *Prentice*, subject to proof and segregation as alleged; and

(c) Lost earnings, diminished earning capacity, and lost productive time attributable to the incremental procurement, review, authentication, and litigation-support burdens created by CSAA's misrepresentation, segregated from attorney-fee damages and to be proven with competent, non-speculative evidence, **including incremental time burdens caused by CSAA's burden-shifting and delay leverage inherent in falsely representing investigative finality.**

(d) Additional medical, therapeutic, and health-related expenses proximately caused by the fraud-induced delay and burdens described herein, including expenses incurred to address incremental physical exacerbation and stress-related conditions;

(e) Incremental non-economic harm proximately caused by the fraud-induced delay and burdens, including physical exacerbation, increased pain and suffering, emotional distress, humiliation, loss of enjoyment of life, and impairment of ordinary functioning, all pleaded as "fraud-delta" damages that are distinct from the underlying collision damages; and

(f) Future economic and non-economic damages proximately caused by CSAA's fraud, according to proof.

51. Plaintiff alleges that CSAA's conduct was willful, oppressive, and fraudulent within the meaning of Civil Code section 3294 in that CSAA stated its investigation was "concluded" and issued a categorical liability denial without having obtained and reviewed foundational objective liability evidence, and did so in a manner intended to convey investigative finality and to discourage or defeat valid claims.

52. Plaintiff alleges that CSAA knew, or acted in conscious disregard of the high probability, that an injured claimant faced with a categorical denial and false investigative finality would foreseeably suffer substantial harm, including the shifting of evidence burdens, protracted delay, and physical and psychological toll, and that CSAA's conduct was despicable in light of Plaintiff's physical vulnerability and the foreseeable consequences of delay and forced proof burdens.

53. Plaintiff is informed and believes, and based thereon alleges, that CSAA's denial-letter language and claims-handling conduct described herein was authorized, ratified, or approved by one or more officers, directors, or managing agents of CSAA, or was implemented pursuant to corpo-

rate training, policies, metrics, or supervisory practices designed to use categorical denial communications to obtain claims leverage and delay, and that such authorization or ratification supports an award of punitive damages against CSAA.

54. Plaintiff seeks compensatory damages according to proof at trial, including economic and non-economic fraud-delta damages as alleged herein, and seeks punitive damages in an amount sufficient to punish and deter, to the extent permitted by law.

SECOND CAUSE OF ACTION
VIOLATION OF BUSINESS & PROFESSIONS CODE § 17200 (UCL)
(AGAINST CSAA AND DOES 26-50)

55. Plaintiff realleges and incorporates by reference paragraphs 1 through 54 as though fully set forth herein.

56. CSAA engaged in unlawful, unfair, and fraudulent business acts and practices within the meaning of Business and Professions Code section 17200, including issuing the Denial Letter as alleged above, **as part of a claim-handling practice that uses categorical "investigation concluded" denial communications to create leverage through burden-shifting and delay.**

57. Unlawful: Plaintiff alleges CSAA's conduct constitutes common-law fraud and deceit in violation of Civil Code sections 1709 and 1710.

58. Fraudulent: Plaintiff alleges CSAA's denial-letter practice is likely to deceive because a reasonable consumer would understand a statement that an investigation is "concluded" to mean the insurer has obtained and reviewed foundational objective liability evidence **or otherwise completed the basic investigative steps necessary to truthfully represent investigative finality** before issuing a categorical liability denial, particularly where such evidence is generated at the time of the incident through 911 and police response channels and is ordinarily obtainable during a routine claim investigation.

59. Unfair: Plaintiff alleges CSAA's practice of issuing categorical denials that state an investigation is "concluded" when foundational objective liability evidence has not been obtained or reviewed causes substantial injury by shifting the cost of basic evidence collection and authentica-

tion burdens onto the injured claimant, **creating delay and coercive pressure consistent with a deny–delay–defend pattern that induces abandonment or undervalued resolution.**

60. Plaintiff has standing to pursue this claim because he has lost money or property as a result of CSAA's unfair competition, including out-of-pocket procurement and investigation costs.

61. Plaintiff seeks:

- restitution of the out-of-pocket procurement and investigation costs according to proof; and
- injunctive relief enjoining CSAA from issuing denial letters stating an investigation is "concluded" **unless and until** CSAA has obtained and reviewed foundational objective liability evidence reasonably necessary to support such a representation, including where applicable 911 audio, body-worn camera footage, and computer aided dispatch records, **or else clearly discloses that such records were not obtained and reviewed before stating any liability conclusion;**

PRAYER FOR RELIEF

WHEREFORE, Plaintiff prays for judgment as follows:

1. For restitution pursuant to Business and Professions Code section 17200, in an amount according to proof;

2. For injunctive relief enjoining CSAA from issuing denial letters stating an investigation is "concluded" **unless and until** CSAA has obtained and reviewed foundational objective liability evidence reasonably necessary to support such a representation, including where applicable 911 audio, body-worn camera footage, and computer aided dispatch records, **or else clearly discloses that such records were not obtained and reviewed before stating any liability conclusion;**

3. For compensatory damages for economic and non-economic losses caused by fraud and deceit according to proof, including out-of-pocket procurement and investigation expenses, additional medical/therapeutic expenses, and fraud-delta physical and emotional harm as alleged;

4. For attorney fees and litigation costs as damages to the extent permitted under Prentice and proven with segregation and reasonableness as alleged;

5. For punitive damages to the extent permitted by law;

6. For costs of suit;

7. For prejudgment interest as permitted by law; and

8. For such other and further relief as the Court deems just and proper.

DEMAND FOR JURY TRIAL

62. Plaintiff hereby demands a trial by jury on all causes of action so triable.

Plaintiff will contemporaneously file or has filed a Supplemental Memorandum Statement in Support of Plaintiff addressing the legal and factual foundation for the denial-letter fraud theory and the "concluded investigation" misrepresentation alleged herein, together with a Memorandum of Points and Authorities regarding the denial-letter fraud theory, Prentice damages, and UCL injunctive relief.

DATED: February 23, 2026

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